

01. 29.1.2020

Heard learned counsel for the petitioners and learned counsel for the State.

The petitioners apprehending their arrest in Paradeep Lock P.S. Case No.4 of 2020 corresponding to G.R. Case No.8 of 2020 pending in the court of learned J.M.F.C., Kujanga registered for alleged commission of offences punishable under Sections 147/148/294/341/337/506/149 IPC have filed this petition for their release on pre-arrest bail.

On consideration of the allegations made in the F.I.R. and also the submissions made, especially the nature and character of allegations, circumstances in which the offences stated to have been committed and also it being not disputed that the petitioners' release on pre-arrest bail shall not be a hindrance to the free and fair investigation, this Court is of the view that the petitioners have made out a case for their release on pre-arrest bail, more particularly when they are ready and willing to cooperate with the investigation and they have no chance of absconding and/or tampering with the prosecution evidence, if released on pre-arrest bail.

Hence, this Court directs that in the event of arrest of the petitioners in connection with the aforesaid case, they be released on bail by the officer effecting arrest on such terms and conditions as deemed just and proper.

However, the aforesaid order is subject to the condition that the petitioners shall cooperate with the investigation and no other graver offence is reported against the petitioners besides the aforesaid offences.

The ABLAPL is, accordingly, disposed of being allowed.

Urgent certified copy of this order be granted on proper application.

PKS

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S.Pujahari, J.